

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner, Department Advocate's Office, 2022-25770. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-25770 against Police Officer Michael Dunn, Tax Registry No. 955894. The case was conferenced on October 13, 2022, before Assistant Deputy Commissioner of Trials Rosemarie Maldonado, who approved the negotiated penalty of forfeiture of SIX (6) vacation days, after a guilty plea.

Jonathan Darche
Executive Director

New York City Civilian Complaint Review Board





DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25770
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, DUNN	FIRST MICHAEL	M.I. K	COMMAND PBQS SPECIALIZED UNITS
SHIELD NO. 14637	TAX REGISTRY NO. 955894	SOCIAL SECURITY NO.		DATE APPOINTED 01/08/2014
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Michael DUNN, on or about December 28, 2020, at approximately 1845, while assigned to 103 PCT and on duty, in the vicinity of § 87(2)(b) and the 103rd PCT stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Queens without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 6.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Michael DUNN, on or about December 28, 2020, at approximately 1845, while assigned to 103 PCT and on duty, in the vicinity of § 87(2)(b) and the 103rd PCT stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER


DATE

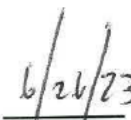
POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER


DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 16, 2023

Re: CCRB Case No. 202008469 (Incident Date: December 28, 2020) involving Police Officer Michael Dunn, Tax No. 955894 (DADS No. 2022-25770)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty settlement regarding the disciplinary matter involving Police Officer Michael Dunn and determined that the actions of Police Officer Michael Dunn were proper and therefore do not warrant disciplinary action.

In this matter, officers responded to a 911 call of an assault in progress. Based on the preliminary conversation with the 911 caller, the officers determined that despite the initial call, an assault had not occurred but rather involved a landlord/tenant dispute. In an effort to investigate the incident, the officers sought to speak with the tenant/complainant to ensure the complainant's safety and well-being. The complainant refused to cooperate with the officers, while simultaneously stating that the caller "sprayed her in the face." Officer Dunn testified that he simply wanted to verify that the complainant was uninjured. Once the complainant's door opened, Officer Dunn observed that the complainant was not physically harmed nor in any danger, and left the location. At no time did Officer Dunn enter or conduct a search of the complainant's apartment.

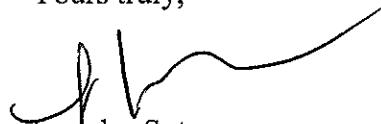
Furthermore, Officer Dunn did not engage in conduct that would warrant the application of New York City Administrative Code 14-173. The complainant did not explicitly request a business card. Additionally, Officer Dunn did not engage in noncustodial questioning of an individual suspected of criminal activity. He clearly stated that he did not suspect the complainant of a crime, rather he wanted to ensure her safety. Finally, Officer Dunn did not engage in an evidentiary search of complainant's home, property, or person. As such, Officer Dunn was not required to offer nor provide a business card under these circumstances.

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Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Police Officer Dunn will receive no disciplinary action.

Yours truly,

A handwritten signature in black ink, appearing to be 'L. Soto', with a long, sweeping horizontal line extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 23, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Michael Dunn
Disciplinary Case No.: 2022-25770

Dear Commissioner Sewell:

I am writing in response to the letter from Inspector Lourdes Soto, dated June 16, 2023 informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the charges and specifications in this matter and Police Officer Dunn will receive no disciplinary action. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Inspector Soto’s notification.

Inspector Soto stated that after reviewing the recommendation of the CCRB regarding the disciplinary matter involving Police Officer Dunn, you have determined that Police Officer Dunn’s actions were proper and do not warrant disciplinary action. In addition, Inspector Soto stated you determined that Police Officer Dunn wanted to ensure the complainant’s safety and well-being because she was allegedly “sprayed her in the face” so it was not unreasonable that Officer Dunn wanted to verify that the complainant was uninjured. Specifically, the Landlord, who is the Complainant, told the 911 operator that § 87(2)(b) his downstairs tenant, had sprayed him in the eyes with an unknown chemical. Finally, you stated Officer Dunn did not engage in any evidentiary search of complainant’s home, property, or person. As such, Officer Dunn was not required to offer nor provide a business card under these circumstances. CCRB disagrees with your determination for the following reasons:

Specification One:

Police Officer Michael Dunn, on or about December 28, 2020, at approximately 1845, while assigned to 103 PCT and on duty, in the vicinity of § 87(2)(b) and the 103rd PCT stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Queens without sufficient legal authority.

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06, page 1, paragraph 2 PROHIBITED CONDUCT]

PO Dunn said that he needed § 87(2)(b) door open because he had to confirm that § 87(2)(b) who was not the complainant, was uninjured and he was also concerned that she potentially could be an “EDP” with an intention to harm herself or others. However, PO Dunn’s BWC footage did not capture any indication that § 87(2)(b) was injured or required medical attention. Because § 87(2)(b) was not the complainant there was no need to see if she was injured and § 87(2)(b) repeatedly informed Officer Dunn that she was fine and did not want him to check on her. Thus, PO Dunn was not justified in forcing § 87(2)(b) door open invading her privacy.

Specification Two:

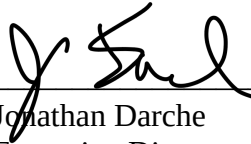
Police Officer Michael Dunn, on or about December 28, 2020, at approximately 1845, while assigned to 103 PCT and on duty, in the vicinity of § 87(2)(b) and the 103rd PCT stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

PG 203-09, page 1, paragraph 1 PUBLIC CONTACT – GENERAL [now encompassed by Administrative Guide 304- 11 COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT

When PO Dunn pulled open § 87(2)(b) door, he searched her apartment, as discussed. New York City Admin Code 14-174 “Identification of police officers” states “During a law enforcement activity, an officer shall 1. Identify himself or herself to the person who is the subject of such law enforcement activity by providing his or her name, rank and command; 2. Provide to such person an explanation of the reason for such law enforcement activity, unless providing such information would impair a criminal investigation; 3. Offer a business card to such person at the conclusion of any such activity that does not result in an arrest or summons.” After he searched the apartment, which was the conclusion of law enforcement activities, PO Dunn was required to provide § 87(2)(b) with a business card as stated in New York City Admin code 14-174. Thus, PO Dunn failed to provide § 87(2)(b) with a business card without sufficient legal authority.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you agree with ADCT Adler's findings that the forfeiture of six vacation days is a fair and reasonable way to address the misconduct in this case. I also note that had the CCRB resolved this case today, under the current policy, if PO Dunn accepted the CCRB's findings, the CCRB would have dismissed the charges and specifications and recommended that you impose a Schedule B CD with forfeiture of six (6) vacation days. Therefore, it is requested that you impose discipline upon PO Dunn with the penalty agreed to by all parties.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Michael Martinez, Esq.